

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, AUGUST 28, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE, N.A. v. MAXUMAN L. CHENIER
Case No. CL24-02673**

Defendant's Motion for Leave to File Cross-Complaint

TENTATIVE RULING

Defendant MAXUMAN L. CHENIER moves for leave to file a cross-complaint against Plaintiff CAPITAL ONE, N.A..

Code of Civil Procedure section 428.10, subdivision (a) permits a party against whom a cause of action has been asserted in a complaint to file a cross-complaint against the initially complaining parties. Code of Civil Procedure section 428.50 allows a cross-complaint against an initially complaining party to be filed after the cross-complaining party has answered the initial complaint only if the cross-complaining party obtains leave of court. Defendant has answered Plaintiff's complaint against him and thus needs leave of course to file a cross-complaint against Plaintiff.

Where a proposed cross-complaint against an initial party is "compulsory," meaning that it is asserted against the initial party and arises out of the same series of transactions or occurrences as the initial party's complaint and therefore must be filed lest the would-be cross-complainant lose his right to assert his claims, leave to file the cross-complaint "shall" be granted "upon such terms as may be just to the parties" if the would-be cross-complainant has "acted in good faith." (Code Civ. Proc., §§ 426.10, 426.30, 426.50.)

A “permissive” cross-complaint, on the other hand, is one against a new party or one where the proposed claims do not relate to the same series of events as the initial party’s complaint, and is given leave for filing only in the court’s discretion. (Code Civ. Proc., § 428.50, subd. (c) [“interests of justice” standard]; *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701.)

Defendant’s proposed cross-complaint does not relate to the same transactions or occurrences as Plaintiff’s complaint. Plaintiff’s complaint states common counts and concerns an alleged credit account debt Defendant owes to Plaintiff. Defendant’s proposed cross-complaint alleges various causes of action stemming from an alleged breach of Plaintiff’s consumer data records in 2019 and Plaintiff’s failure to inform its customers of the breach. Thus Defendant’s proposed cross-complaint is a permissive cross-complaint and leave is a matter of the court’s discretion.

Trial is presently set in this matter for October 14, 2026. Defendant’s cross-complaint would tremendously expand the scope of this otherwise simple and straightforward common counts case as it would require litigation on wide-ranging questions about Plaintiff’s data security practices, customer interactions, and more. Further, Defendant does not explain why he waited until 2026 to seek leave to file his cross-complaint concerning an event from 2019 and in this case where he filed an answer to Plaintiff’s complaint in 2024.

Defendant’s motion for leave to file a cross-complaint is denied.

JEFFERSON CAPITAL SYSTEMS LLC v. ASHLEY OWENS
Case No. CL25-02540

Motion to Deem Requests for Admissions Admitted

TENTATIVE RULING

The motion is GRANTED.

Each of the requests in the requests for admissions is hereby deemed to be admitted.

SHEA HUGHES et al. v. TVI, INC. et al.
Case No. CU23-05591

Motion for Preliminary Approval of PAGA & Class Action Settlement

TENTATIVE RULING

Plaintiffs SHEA HUGHES and JOSE VILLANUEVA move for preliminary approval of the settlement reached with Defendants TVI, INC., SAVERS RECYCLING, INC., and